

HOUSE No. 2300

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to local option for associate members of planning boards.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/16/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/25/2025</i>

HOUSE No. 2300

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 2300) of Kristin E. Kassner and Natalie M. Blais relative to local option for associate members of planning boards. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3555 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to local option for associate members of planning boards.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of chapter 40A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the eleventh paragraph.

3 SECTION 2. Section 81A of chapter 41 of the General Laws, as appearing in the 2022
4 Official Edition, is hereby amended by inserting after the first paragraph the following
5 paragraph:-

6 Zoning ordinances or by-laws may provide for associate members of a planning board.
7 One associate member may be authorized when the planning board consists of five members,
8 and two associate members may be authorized when the planning board consists of more than
9 five members. A city or town which establishes the position of associate member shall determine

10 the procedure for filling such position. If provision for filling the position of associate member
11 has been made, in the case of absence, inability to act, conflict of interest on the part of any
12 member of the planning board, or in the event of a vacancy on the board the chairman of the
13 planning board may designate an associate member to sit on the board for the purposes of acting
14 on any matter under its jurisdiction including but not limited to this chapter, chapter 40A or
15 under its home rule powers.